

Dau Dayal v. State of U.P. and 2 Others

Allahabad High Court · Division Bench · 7 January 2020 · Writ - C No. 130 of 2020 · **Writ disposed of; petitioner relegated to Clause 6.5**

HEADNOTE

A consumer who challenges an electricity bill and seeks a writ quashing the bill or restraining disconnection is relegated to Clause 6.5 of the U.P. Electricity Supply Code, 2005. If the consumer applies under that clause after completing the formalities within 10 days, the competent authority is to consider and decide it in accordance with law. The Court does not examine the bill.

FACTUAL SUMMARY

Dau Dayal challenged an electricity bill. The Court treated the grievance as one against an electricity bill and pointed the petitioner to Clause 6.5 before the competent authority.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

Billing objection — relegation to Clause 6.5

HOLDING

A writ seeking quashing of an electricity bill and/or a restraint on disconnection is disposed of without examining the bill. The consumer has a remedy before the competent authority under Clause 6.5 of the U.P. Electricity Supply Code, 2005. If an application is made after completing the formalities within 10 days, it shall be considered and decided in accordance with law.

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A writ challenging an electricity bill is disposed of without examining the bill; the consumer is pointed to Clause 6.5.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE DISPUTED ELECTRICITY BILL

Left to the Clause 6.5 authority.